

Court No. - 3

Case :- WRIT - C No. - 17317 of 2013

Petitioner :- Abdul Hameed Alias Abdul Haneef

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- A.K. Trivedi, Raj Narayan Singh

Respondent Counsel :- Amrit Lal Yadav

Hon'ble Laxmi Kanta Mohapatra, J.

Hon'ble Mrs. Sunita Agarwal, J.

Heard Sri Riajuddin Ansari holding brief of Sri A.K. Trivedi, learned counsel for the petitioner and Sri A.L. Yadav, learned counsel for respondents.

The petitioner had taken domestic electricity connection from the respondents and was depositing the electricity charges. In the month of July and August, 2011 respondents raised bill for an amount of Rs.1,50,773/- towards electricity consumed by the petitioner. Objecting to the said bill, the petitioner deposited a sum of Rs.50,000/- and at the same time prayed for installation of check meter to find out as to whether the meter installed in the house of the petitioner was defective or not.

Grievance of the petitioner is that neither a check meter is being installed to find out as to whether the meter is defective or not nor the bill raised in July, 2011 is being revised.

After hearing learned counsel for the parties, we dispose of the writ petition directing the respondent no. 3 to install a check meter in the house of the petitioner in terms of clause 5.6 of the Uttar Pradesh Electricity Supply Code, 2005 within one month from today and find out as to whether the meter installed in the house of the petitioner is defective or not. Depending upon the result of such inspection, appropriate orders shall be passed by the respondents for correction of bills.

Order Date :- 11.4.2013

P.P.